

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/05/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0005468

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: MICAELLA CRISTINA
CAPELLI

vs.

DEFENDANT: MARIN HEALTH, ET AL

NATURE OF PROCEEDINGS: MOTION – OTHER: TO POST AN UNDERTAKING

RULING

Defendant Marin Health filed this motion against Plaintiff Micaella Capelli to post an undertaking. A notice of the motion was served on counsel for Plaintiff and no opposition was filed. . A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

In light of the non-opposition and after review of the pleadings, the court grants the motion in part. The court agrees that Defendant has fulfilled the requirements for the posting of an undertaking but disagrees as to the amount. Defendant has filed a summary judgment motion which, if granted, would obviate the need for expert testimony fees at trial, and all other related costs. The court shall require an undertaking of \$3,500 to be deposited within 30 days of service of this order.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHNgEGafG.1>

Meeting ID: 161 548 7764
Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/05/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006454

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: BANK OF AMERICA, N.A.

vs.

DEFENDANT: VERONICA M. AJIBOYE

NATURE OF PROCEEDINGS: MOTION – QUASH SERVICE OF SUMMONS

RULING

Defendant Veronica Ajiboye filed a motion to quash service of summons. The motion was served on Plaintiff's counsel Gregory Parks and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

The

Court grants the motion in light of the non-opposition.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

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